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Joint Analysis of the FBI Search of 8 Hale in *US v. Raniere*

Overview

Dr. Kiper previously reported on irregularities in the FBI search of 8 Hale in the case of *US v. Raniere*, where the alleged child pornography evidence (now discovered to have been falsified) was collected on March 27, 2018.[1] The government responded to only one of his findings, calling it "little more than insinuation."[2]

We, the undersigned four former FBI examiners, analyzed the photo log created by Special Agent ("SA") Christopher Mills from the search of 8 Hale. (Government Exhibit 502-A) We have had experience participating in many searches during our combined 55 years of service to the FBI.

We have determined that the search scene was manipulated, and evidence items were indisputably staged. This determination takes into consideration the totality of the technical findings, independently concluded by seven forensic examiners, that the alleged child pornography evidence was falsified. It becomes absolutely apparent that the manipulation of the search scene photos could have been part of a predetermined series of actions. The principal goal would have been the crafting of a false narrative regarding the defendant and the alleged creation of child pornography.

Specifically, calling attention to the bookshelf where the agents collected the crucial hard drive containing the alleged child pornography, we determined that this bookshelf was used to stage evidentiary photos of Items 36 and 37. The staging even involved two books about sex trafficking: the central suspected crime of the search. These two books suddenly appeared on a desk, were not taken in as evidence, and were seemingly only used later as 'props.'

This staged photographing of evidence calls into question whether the items collected, including the camera and hard drive, were authentically found at the scene where photographed.

The FBI provides training and standard operating procedures to ensure evidence photographs are faithful representations of the scene or the items in question. The FBI also has an Evidence Response Team (ERT) located at each field office, and these teams receive additional training to ensure the proper collection and preservation of evidence. Any Special Agent may request the assistance of ERT; however, they were not utilized in this search. Any manipulation or staging of evidence photographs is a severe breach of protocol and ethics.

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[1] See Kiper Report, Doc. 1169-1 (Bates 194-252) at Bates 050-056.
[2] See Government Opposition Memorandum, Doc. 1213 at 10.

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We have never in our careers witnessed FBI misconduct like this. Further, the staging of evidence was not obvious upon initial review, as the camera angles differ, rooms are cluttered, and many of the pictures are dark.

Based on the above, the FBI search of 8 Hale was manipulated and staged. Further, as this photo log was used as evidence in the trial, from an evidentiary standpoint, the staging of evidence likely constitutes evidence tampering.

The photographing agent, SA Mills, is directly implicated in this misconduct. Ascertaining the extent of this misconduct would benefit from questioning the other participants of the search: Special Agent Christine Doyle, Special Agent Elliot McGinnis, Special Agent Tracee Mergen, Task Force Officer Vincent Augeri, Special Agent Anthony Hingle, Special Agent Michelle Pherson, Special Agent Timothy Coll, and Task Force Officer Brett Hochron.[3]

[3] See 3500-CM.

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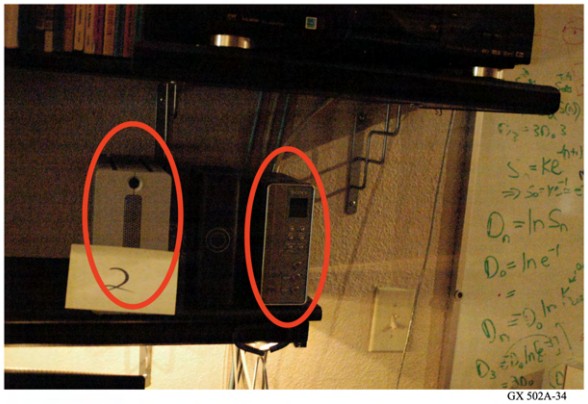
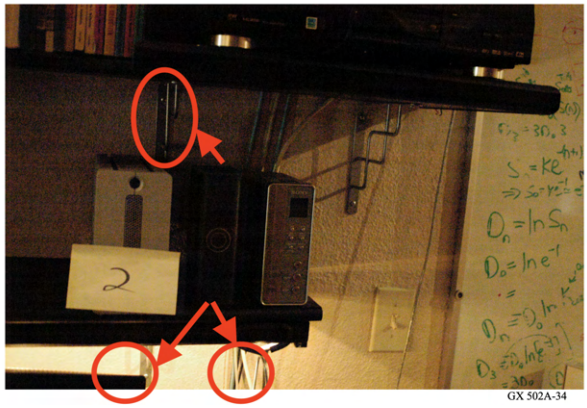
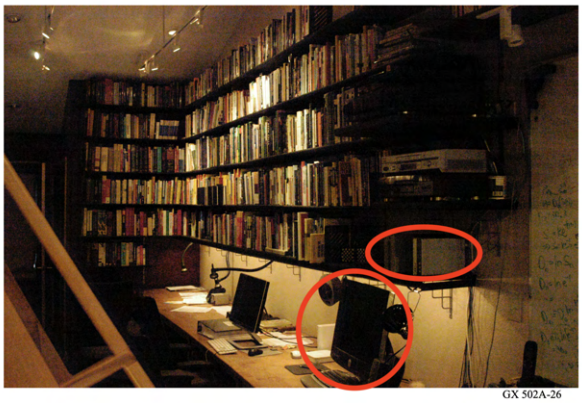
Findings

<u>FBI personnel staged photos of Items 36 and 37.</u>

Two items (Items 36, a DVD drive, and 37, a hard drive) were initially photographed next to the original hard drive (*see* Photo #34; note the DVD drive (Item 36) is labeled Item 2 in that photo, while the hard drive (Item 37) is circled but not labeled; in between them sits the original black hard drive, in shadow). After Photo #34 was taken, FBI personnel staged Items 36 and 37 with new 'props,' including two books on sex trafficking and a Rubik's cube (Photos #71 and #72). This is illustrated in the tables below.

Photo #34 shows that Items 36 and 37 (originally labeled Item 2) were initially photographed next to the crucial original hard drive. In this photo, the original hard drive is visible in shadow between the two circled items.	All three devices were initially photographed on the bookshelf above the computer monitor, next to the wall bracket, as shown in Photos #34 and #26.
 GX 502A-34	 GX 502A-34  GX 502A-26

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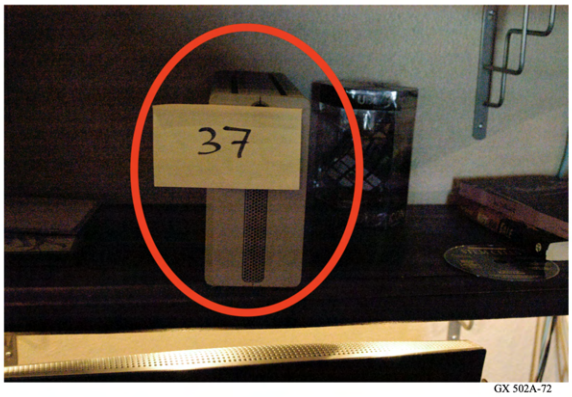
Subsequently, all three devices were cleared out, and Items 36 and 37 were then each individually re-photographed in a staged setting on the same shelf, next to some new items that weren't on the shelf previously. (Photos #71and #72)	In Photo #71, Item 36 was staged with these circled items. From left to right: a small stack of CDs, a jar containing a Rubik's cube, and two books. In Photo #72, Item 37 is in the exact same physical location as Item 36 in Photo #71, photographed with the exact same circled items: CDs, the jar with the Rubik's cube, and two books. The staging is plainly obvious when comparing Photo #71 with Photo #72.
 GX 502A-71  GX 502A-72	 GX 502A-71 GX 502A-72

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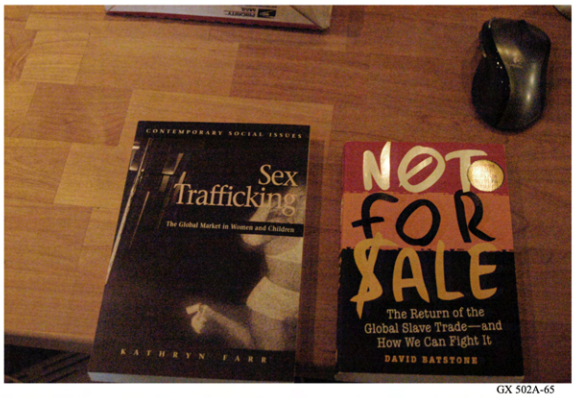
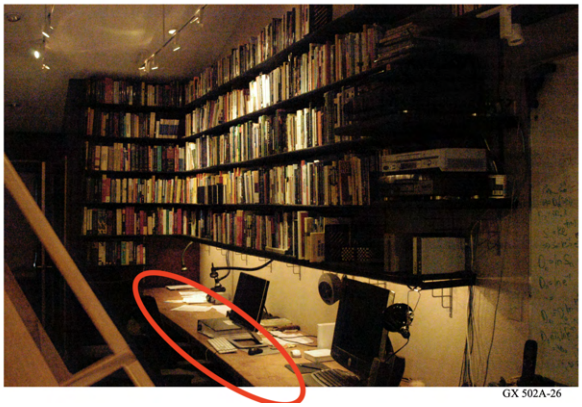
A closer look at Photos #71 and #72 reveals that Items 36 and 37 were each photographed on the **<u>same part</u>** of the **<u>same shelf</u>** of the bookcase, as demonstrated by the identical proximity of each Item to the computer monitor and wall bracket, circled. This means that with Photo #72, the bookshelf was staged anew, swapping out Item 37 for Item 36. See Photo #26 to understand the relative placement of said monitor and wall bracket.	In Photo #65, a closer look at the two books staged as non-evidentiary background items (seen at the right edge of Photos #71 and #72) reveals their strangely coincidental topic: sex trafficking, which happened to be the central focus of the FBI search. Photo #26 shows that these books were not on the desk initially so they would have been placed there from an unknown location.
 	 GX 502A-65  GX 502A-26

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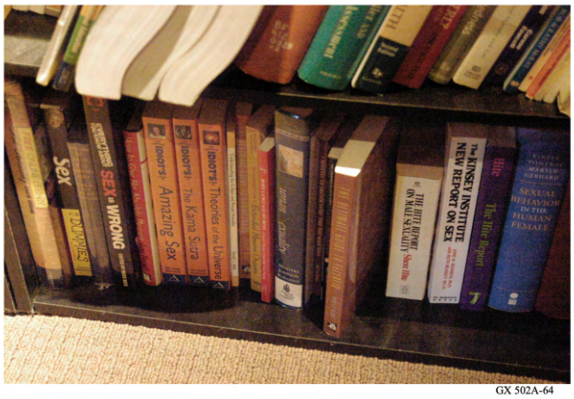
Photo #64, taken just prior to the close-up photo of the two books (Photo #65), is a photo of a bookshelf containing sex-themed books. It **<u>does not contain the two books on sex trafficking</u>**. Therefore, their origin is unknown.	
 GX 502A-64	

In conclusion, the above series of photos and captions plainly shows the following:

- Items 36 and 37 were initially photographed on a bookshelf next to the crucial hard drive containing the alleged child pornography. (Photos #26 and #34)
- The bookshelf was then cleared of all three devices, and subsequently staged with non-evidentiary 'props' prior to being photographed with Item 36 and Item 37, respectively. (Photos #71 and #72)
- The origin of these non-evidentiary items is unknown.

Other evidentiary items also appear staged. However, we focus on the finding above as the most indisputable and condemning example of staging.

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We, the undersigned, declare under penalty of perjury, pursuant to 28 U.S.C. 1746, that the foregoing is true and correct.

Signature: DocuSigned by: 958F4F5949A24DD...

Date: 9/13/2023

Name: Dr. James Richard Kiper, Ph.D.

Background: Former FBI Special Agent, Computer Forensic Examiner, and Unit Chief at the FBI Academy, 20 years' service to the FBI

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Date: 9/13/2023

Name: Stacy Eldridge

Background: Former FBI Senior Forensic Examiner, 10 years' service to the FBI

Signature: DocuSigned by: Mark Bowling 0F067686214444 0...

Date: 9/13/2023

Name: Mark Daniel Bowling

Background: Former FBI Assistant Special Agent in Charge, FBI Inspector in Place, Cyber Program Manager, and FBI Forensic Examiner, 20 years' service to the FBI

Signature: DocuSigned by: William Odom A3E37825AE824DC...

Date: 9/14/2023

Name: William Odom

Background: Former FBI Special Agent and Forensic Examiner, Manager of the FBI Forensics Lab in Houston; 5 years' service to the FBI.